

Mattaparti Naga Jyothi vs Mattaparthi Sudheer on 7 April, 2022

THE HON'BLE Ms. JUSTICE B.S.BHANUMATHI

C.R.P.No.3224 OF 2019

ORDER:

This revision is preferred against the order dated 18.07.2019 in I.A.No.461 of 2019 in O.P.No.31/2017 on the file of the Court of the Senior Civil Judge, Ramachandrapuram, East Godavari District which is filed for maintenance to the petitioner under Section 24 of the Hindu Marriage Act, 1955 ('Act' for short) pending main petition which is filed for restitution of conjugal rights under Section 9 of the Act. The petition was opposed by the respondent by filing counter to the effect that a decree of divorce was granted in FCOP No.210 of 2017 by the Family Court, L.B.Nagar, Ranga Reddy District on 07.12.2017 as the revision petitioner herein failed to appear before the said Court after the matter was referred for reconciliation, however, later she filed I.A.No.265 of 2018 under order XIX, Rule 1 of Code of Civil Procedure(CPC) to set aside the ex-parte decree and also another application in I.A.No.264 of 2018 to condone delay in filing the petition under Section 24 of the Act, r/w Section 151 of CPC. Since the petitions were allowed, revisions were preferred before the High Court and thereby orders passed in those petitions were suspended by the order of High Court in I.A.No.1 of 2018 in CRP.No.4478 of 2018.

In view of the objection raised in challenging the maintainability of the main petition for restitution of conjugal rights, while decree for divorce is in force, the Court below was in the opinion that without deciding the maintainability of the main proceedings the petitioner is not entitled to any maintenance under Section 24 of the Act, and thereby dismissed the petition without going into the other merits of the entitlement of the petitioner for any maintenance.

Having aggrieved by the said order this revision petition is filed. It is contended that as long as the proceedings seeking the relief of restitution of Conjugal rights are pending, the petition under Section 24 of the Hindu Marriage Act, 1956 is maintainable irrespective of challenge as to the maintainability of the main proceedings as the issue of maintainability is also part of the proceedings.

Heard learned counsels for both the parties, they submitted their arguments on the same lines as indicated above.

For the purpose of better appreciation of the legal aspect involved in the present revision petition, it is necessary to refer under Section 24 of the Act, here under available.

"Section 24: Maintenance pendente lite and expenses of proceedings:

Where in any proceeding under this Act it appears to the court that either the wife or the husband, as the case may be, has no independent income sufficient for her or his

support and the necessary expenses of the proceeding, it may, on the application of the wife or the husband, order the respondent to pay to the petitioner the expenses of the proceeding, and monthly during the proceeding such sum as, having regard to the petitioner's own income and the income of the respondent, it may seem to the court to be reasonable.

Provided that the application for the payment of the expenses of the proceeding and such monthly sum during the proceeding, shall, as far as possible, be disposed of within sixty days from the date of service of notice on the wife or the husband, as the case may be."

A perusal of the above provision makes it clear that the provision does not limit its scope to pass any order there-under, if there is any dispute as to the maintainability of the proceedings under the said Act. Outcome of the challenge made to maintainability as long as the proceedings are pending, the petition filed under Section 24 of the Act, cannot be rejected or dismissed on the ground observed by the Court below. Therefore the observation of the Court below on the maintainability of this petition is erroneous and needs to be interfered in the revision. Since the petition was not disposed of on merits, the Court below is directed to dispose of the petition on merits within two (2) months from the date of receipt of copy of this order.

Accordingly, this revision petition is allowed setting aside the order in I.A.No.1 of 2018 in CRP.No.4478 of 2018 with a direction to Court below to dispose of the petition on merits within two (02) months from the date of receipt of copy of this order. No costs.

Pending miscellaneous petitions, if any, shall stand closed.

B.S.BHANUMATHI, J 7th April, 2022 PGT THE HON'BLE Ms. JUSTICE
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